



File No.: EXP202313838

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On August 22, 2023, Mr. A.A.A. filed a complaint with the Spanish Agency for Data Protection against CORREOS EXPRESS PAQUETERIA URGENTE, S.A., S.M.E with NIF A28799120 (hereinafter, the complained party or CORREOS EXPRESS). The reasons for the complaint are as follows:

The complainant states that he was the recipient of a package whose delivery management was carried out by the complained entity, who delivered, without his consent, the package to a public establishment, a bar, which resulted in the exposure of his personal data to third parties; as his data appeared on the shipping label of the package.

Along with the complaint, he provides the purchase document for the products that were in the package of which he was the recipient and the delivery note for the package.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to CORREOS EXPRESS, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on October 7, 2023, as stated in the receipt certificate in the file.

On November 2, 2023, a response letter was received by this Agency indicating that "...Following the internal investigation initiated by Correos Express, as outlined in section 1 of this letter, the following facts have been clarified:

On August 1, 2023, a shipment was processed, with shipping code No. (...), whose recipient was the complainant and the sender was the company Arise Netherlands E-commerce B.V. (hereinafter, "MIRAVIA"), which is a client of Correos Express as both entities have entered into a commercial agreement.

C/ Jorge Juan, 6

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28001 – Madrid

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2/6

provision of transportation services. We attach to this document as ANNEX 1 the shipping data that appears in the information systems of Correos Express and as ANNEX 2 the commercial agreement for the provision of transportation services between MIRAVIA and Correos Express.

On August 3, 2023, the driver responsible for delivering the shipment delivered the shipment at 13:52h, as stated in the proof of delivery that we attach as ANNEX 3. At this point, we must inform that the driver responsible for delivering the shipment is a provider of Correos Express who works as a self-employed carrier. We attach as ANNEX 4 the service agreement signed with this provider.

On August 11, 2023, the claimant contacted the Customer Service of Correos Express by phone to file a complaint indicating that they had not received their shipment, to which the Customer Service of Correos Express responded on August 18, 2023, via email indicating that the shipment was not located according to the information available in the systems of Correos Express and advising them to contact the sender of the shipment to file the corresponding complaint. On August 22, 2023, the claimant opened a new complaint under the same terms as the previous one through the phone of the Customer Service of Correos Express, to which they responded via email on August 29, 2023, providing the same response as in the previous complaint. We attach both communications from the Customer Service of Correos Express as ANNEX 5.

On August 11, 2023, the Customer Care team of Miravia contacted Correos Express requesting information about the shipment subject to this complaint, indicating that the order had the status "Delivered," but the customer had not received it. It was also indicated that efforts should be made to recover the shipment and that, if not possible, the shipment should be declared lost so that a refund could be processed for the customer. We attach the email from MIRAVIA to Correos Express as ANNEX 6.

Correos Express proceeded to call the provider to clarify what had happened with this shipment and its whereabouts. The driver reported that the shipment was mistakenly delivered to a location, a café (...), because he confused Mr. A.A.A. with another recipient for whom he did have authorization to deliver shipments at that café. We attach as ANNEX 7 the statement from the provider responsible for the delivery of the shipment.

At this point, we consider it essential to point out that Correos Express provides instructions on how deliveries should be carried out to all its transportation providers who distribute the shipments.

Likewise, Correos Express periodically reminds its providers to reinforce this information, especially the importance of only delivering shipments to the recipients or third parties authorized by them. We attach as ANNEX 8 the latest communication from October 2023 sent by Correos Express to the providers in the area corresponding to the shipping address, which the carrier responsible for the delivery subject to the complaint received and signed on October 3, 2023.

C/ Jorge Juan, 6

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3/6

delivery procedure of Correos Express and which indicates that according to data protection regulations, shipments should not be delivered to third parties other than the recipient, unless Correos Express has written authorization from the recipient for them to be delivered to third parties other than the recipient.

Finally, we consider it relevant to point out that, once made aware of the error, the Correos Express provider called the recipient by phone to convey their apologies for the confusion with the two shipments, and the recipient confirmed that they had the shipment in their possession...".

THIRD: On November 21, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted was admitted for processing.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Data Protection Agency is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In this case, CORREO EXPRESS was the company responsible for delivering the package to the complainant; however, it delivered it to a third party without the consent of the complainant.

CORREO EXPRESS is the urgent parcel company of the Correos Group, dedicated to urgent parcel services in the Iberian Peninsula and international destinations, integrating into the development and business needs of its clients, guaranteeing the committed quality and respecting the environment.

In the exercise of this activity, CORREO EXPRESS carries out, among other processes, the collection, consultation, use, and access to the following personal data of clients, such as: name, surname, ID

number, foreign ID number and/or passport, postal address, etc.

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4/6

CORREO EXPRESS carries out this activity in its capacity as data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

Article 4, section 12 of the GDPR broadly defines "personal data security breaches" (hereinafter security breach) as "all breaches of security that result in the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or unauthorized communication or access to such data."

III

Adoption of measures for compliance with regulations

CORREOS EXPRESS states in the document submitted to the AEPD on November 8, 2023, that "...Correos Express provides instructions on how deliveries should be carried out to all carriers distributing Correos Express shipments. Additionally, Correos Express periodically reminds carriers to reinforce this information, especially the importance of only delivering shipments to the recipients or third parties authorized by them. We attach as ANNEX 7 to this document a communication sent by Correos Express in which it is reminded how deliveries of shipments operated by Correos Express should be made, and specifically it is indicated that deliveries to third parties other than the recipients can only be made in those cases where the recipient has authorized in writing the delivery of the shipment to a third party.

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5/6

Consequently, it is evident that CORREOS EXPRESS has adopted additional measures subsequent to the filing of the complaint; therefore, the application of Article 65.6 of the LOPDGDD is warranted, which expressly states that:

"(...) 6. After the admission for processing, if the data controller or processor demonstrates that they have adopted measures to comply with the applicable regulations, the Spanish Agency for Data Protection may resolve to archive the complaint when specific circumstances advise the adoption of other more moderate or alternative solutions to corrective action, provided that no prior investigation actions or any of the procedures regulated in this organic law have been initiated (...)."

IV

Conclusion

Therefore, based on the indications in the previous paragraphs, and given that according to Article 65.6 of the LOPDGDD, there are circumstances that advise the adoption of alternative solutions to corrective action, the archiving of the complaint is warranted.

All of this is without prejudice to any possible subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, in accordance with the aforementioned, it is AGREED by the Director of the Spanish Agency for Data Protection:

FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to CORREOS EXPRESS PAQUETERIA URGENTE, S.A., S.M.E and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in

accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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